

CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

**LAFAYETTE COUNTY
FILED**

V.

MAY 20 2022

L21-494

STATE OF MISSISSIPPI

JEFF BUSBY
CIRCUIT CLERK
BY: [Signature] D.C.

RESPONSE TO NOTICE OF APPEAL AND JURY TRIAL DEMAND

COMES NOW the State of Mississippi by Bela J Chain III, County Attorney, Lafayette County, Mississippi and responds to the notice of appeal and jury trial demand of Matthew Reardon as follows, to wit:

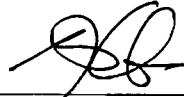
1. Matthew Reardon was convicted in the Justice Court of Lafayette County, MS, of various offenses which occurred on two separate and distinct dates and are in now way related to each other.
2. The two separate matters purportedly appealed occurred on December 28, 2020, (being resisting arrest and disorderly conduct) and on February 21, 2021, (being a DUI first offense and related traffic citations).
3. The two separate and distinct matters have been appealed under a single Circuit Court case filing when each should have be appealed in its own file and on its own merits.
4. Judgment of the Justice Court of Lafayette County, Mississippi, was entered on November 24, 2021, the Defendant therein did not file and perfect his appeal on the two separate matter within the 30 days as is allowed under Rule 29.1 of the MRCrimP.
5. Additionally, if the deficiencies are cured, the demand of Matthew Reardon for a jury trial is not warranted under Rule 29.5 of the MRCrimP which says in part that "In appeals from justice or municipal court, when the maximum possible sentence is six (6) months or less, the case may

be tried without a jury". None of the defendant's charges carry greater than a 6 month sentence.

WHEREFORE PREMISE CONSIDERED the purported appeal should be dismissed as being untimely filed and perfected.

Alternatively, if found to be timely, the matter should be heard without a jury as is contemplated in Rule 29.5 of MRCimP.

RESPECTFULLY SUBMITTED this the 20th day of May , 2022.



Bela J Chain III, County Attorney

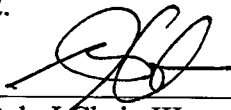
CERTIFICATE OF SERVICE

I, Bela J Chain III do hereby certify that I have this day provided a true and correct copy of the above and foregoing RESPONSE TO NOTICE OF APPEAL AND JURY TRIAL DEMAND, by U.S. Mail, postage prepaid to:

Mitchell O. Driskell, III
Daniel Coker Horton & Bell, P.A
P. O. Box 1396
Oxford, MS 38655

Honorable Kelly Luther
Senior Circuit Court Judge
102-F N. Main St.
Ripley, MS 38663

SO CERTIFIED this the 16th day of May, 2022.



Bela J Chain III